valid unless modified in accordance with the terms and conditions contained herein.
M/s DIVY Power Pvt. Ltd., a company duly incorporated under the Indian Companies Act, 1956 and having its Office at 53, Ramte Ram Road, Ghaziabad, Uttar Pradesh 201001, INDIA (hereinafter referred to as "DIVY Power") provides the following limited warranties to the Buyers (as defined hereinafter), subject to term and exclusions contained herein.

For registration of your system:

Document No	**DV25GST-83**
System Size (in kwp)	**4 KWP**
Customer Name	**JAIBIR SINGH PAYAL**
Customer Number	**8800328373**
Customer Address	**FLAT NO.8 METRO COMPLEX SEC 5 RAJENDRA NAGAR 201005**
Pin Code with proper landmark	**201005**
Date of Installation & Commissioning	**28-08-2024**
Invoice No.	**DV25GST-83**
Sign. & Stamp of Company Divy power pvt ltd For Divy Power Private Limited Authorised Signatory	**Sign. & Stamp of Customer** **JAIBIR SINGH PAYAL**

For Divy Power Private Limited
Authorised Signatory

Power, and where such customer has installed such SPG Systems for its own use in India (the Buyer).

• WARRANTY COMMENCEMENT DATE

2.2 The warranty commences from the earlier of:

a) Date of installation of the SPG Systems is given above: or

b) Six months after the date of dispatch of the material for the said SPG Systems from the factory premises.

(Either of the above "Warranty Commencement Date").

2.2 A Buyer making a claim under this Warranty shall have to establish the delivery installation date by providing the original invoice or sale receipt of the said SPG System.

3. WARRANTY DESCRIPTIONS AND WARRANTY PERIOD

3.1 Subject to terms, conditions and limitations contained herein. DIVY Power provides the BUYER that the parts of SPG system are free from defects in workmanship and/or materials for the following period from the Warranty Commencement Date:

Modules*: Material manufacturing Warranty 5 years, Performance Warranty 90% at the end of 10 years and 80% at the end of 25years provided by its respective manufacturer.

*All terms & conditions as per LIMITED WARRANTY CERTIFICATES FOR **Monocrystline 500WP Bluebird**

1. **MS2404301A0928**
2. **MS2404301A0966**
3. **MS2404301A0956**
4. **MS2404301A0961**
5. **MS2404301A0959**
6. **MS2404301A0883**

…….Module series

For Divy Power Private Limited

Authorised Signatory

INSTALLATION WARRANTY

4.1 Subject to terms, conditions and limitations contained herein. DIVY Power warrants to the Buyer that commencing on the Warranty Commencement Date (i) the SPG System will be installed in accordance with all applicable and relevant Indian standards and (ii) designated representatives of DIVY Power installing the SPG System shall be experienced contractors.

4.2 DIVY Power is relying on the Buyer's representation and warranty that the premises are suitable for the installation of the SPG System and the Buyer indemnifies DIVY Power for any loss, damage, costs and expenses suffered or incurred by DIVY Power as a result of this representation and warranty being incorrect.

4.3 Period:

a) The BUYER must notify DIVY Power of any wrong or defective installation of the SPG system by DIVY Power within Two (2) working days of the Warranty Commencement Period or the Date of Installation and Commissioning whichever is earlier.

b) At the expiry of such two (2) working days' period as mentioned above, DIVY Power will in no way be liable for any damage or injury alleged to have been caused in connection with the wrong or defective installation of the SPG System.

5. WARRANTY EXCLUSION AND LIMITATIONS

5.1 Their warranties provided herein do not include damage, malfunctions or service failures caused by or resulting from:

a) Inappropriate handling during transportation or storage misuse, abuse, neglect or accident.

b) Negligent maintenance or non-performance of the periodic function checks of the system and/or failure to comply with any of the instructions detailed in the DIVY Power installation manual for the concerned SPG System.

c) Installation of the SPG System or any part thereof by service technicians who have not been appointed by DIVY Power or their authorized representatives, or under be relevant law and/or applicable regulations;

For Divy Power Private Limited

Authorised Signatory

f) Type, nameplate or serial number is fully or partly changed/modified/ altered, erased or made illegible on any component supplied as part of the SPG System.

g) The SPG System's installation in marine environments such as ships, buoys, offshore structures, or used for unused purposes, unless these exceptions are expressly permitted by the technical specifications stipulated by DIVY Power:

h) Unauthorized repair or maintenance done on the SPG Systems or any component thereof.

i) Connections in SPG Systems not in compliance with specifications provided by DIVY Power.

j) Exposure to improper voltage or power surges or abnormal environmental conditions (such as acid rain or other pollution).

k) Force majeure events, forces of nature and climatic conditions, acts of violence, intervention by third parties of other external forces such as explosions, roils, war, terrorist attacks or theft, damage by animals, floods, water damage, avalanches, fire, storm, typhoons, hurricanes, lightning, or ground movements, or other similar conditions.

l) exposure to mold discoloration or similar external effects.

m) exposure to any of the following: extreme thermal or environmental conditions or rapid changes in such conditions, corrosion, oxidation, unauthorized modifications or connections, unauthorized opening, servicing by use of spare parts which are not manufactured or approved by DIVY Power, influence from chemical products.

n) use of the SPG System in such a manner as to in fridge DIVY Power's or any third Party's intellectual property rights (e.g. patents, trademarks etc.)

o) any reception problems, distortion related to noise, echo interference or other signal transmission problems; and

p) any problem with components not supplied by DIVY Power like energy meters, LT panels, evacuation cable, etc. (which are covered and maintained by the buyer)

5.2 Any deterioration in appearance of the SPG System (including any scratches, stains, mechanical wear, rust or mold), or any other alterations to the SPG system which occurs after delivery to the Buyer,

For Divy Power Private Limited

Authorised Signatory

DIVY Power or Buyer has been advised of the possibility of any such damages or the like. The warranties provided here are in lieu of all other warranties, express or implied. There are no warranties which extend beyond those here stated, all which DIVY Power expressly disclaims, including the implied warranty of fitness for a particular purpose and/or the warranty of merchantability.

5.4 DIVY Power excludes its liability for any indirect, special, incidental, consequential or punitive damages arising from the use or loss of use, or failure of any of the SPG Systems to perform as warranted, including but not limited to damages for lost services, profits or savings, losses and expenses, whether or not arising out of third-party claims. DIVY Power's maximum liability under this warranty, either expressed, or implied or statutory for any manufacturing or design or installation defects, is limited to the actual purchase price of the SPG system reduced by all taxes, duties, insurance and transportation expenses (if any), received by DIVY Power from the buyer at the time of sale and installation of such SPG System. The Buyer's exclusive remedy for breach of Warranty shall be only as stated herein.

5.5 Notwithstanding anything contained herein, DIVY Power not in any circumstances be liable to the Buyer or any third party for the death of any person or any loss, injury or damage to any person or property due to the usage of the SPG System.

6. REMEDIES AVAILABLE UNDER THE WARRANTY

6.1 As Buyer's sole and exclusive remedy under this Warranty, DIVY Power will at its sole discretion with regard to the applicable SPG System, subject to the terms detailed in the Warranty, either:

a) Repair the defective SPG System or part thereof at no charge; or,

b) Replace the defective SPG System or part thereof by a new or re-manufactured equivalent or better SPG System, at the sole discretion of DIVY Power at no change.

6.2 Replaced parts of the SPG System will become the property of DIVY Power and the Buyer shall have no right over such replaced parts.

6.3 In the event of remedies under Clause 6.1 above, DIVY Power shall not be liable for any insurance or transportation charges, customs clearance or any other costs incurred by the Buyer for returning the defective components of SPG Systems to DIVY Power and shipping repaired or replaced components of SPG System to the Buyer. Further, DIVY Power shall not be responsible for, and Buyer hereby agrees to be solely responsible for the costs and any ancillary expenses regarding any on-site labor and any costs

For Divy Power Private Limited

Authorised Signatory

Period for replaced or repaired SPG System(s) is the remainder of the warranty on the original SPG System.

7. WARRANTY CLAIMS AND SERVICE

7.1 All warranty claims must be received by DIVY Power within the Warranty Period for the claim to be valid. Subject to the aforesaid, all Warranty claims shall be made immediately to DIVY Power and maximum within two (2) working days of first discovery of the defect. Any claim made after two (2) working days from the date on which the defect is discovered by the Buyer or ought to have been discovered by the Buyer, shall not be considered as a valid claim under this Warranty even if such claim is made within the Warranty period.

7.2 All Warranty claims must be in writing and should be provided to DIVY Power along with full and proper details of the purchase date, serial number of the SPG System, detailed description of the alleged defect, a copy of the corresponding invoice and other related documents evidencing that the claim is within the Warranty Period and in compliance with the terms of this Warranty.

7.3 The return of any defective SPG System will not be accepted unless prior written authorization has been given by DIVY Power in this regard.

7.4 DIVY Power may, at its sole discretion appoint a reputable researcher from a first-class international test-institute ("Technical Expert") to examine and verify and Warranty claims made by the Buyer in relation to the SPG System . The determined by the technical expert in relation to any Warranty claim or alleged defect in the SPG System will be final, conclusive and binding on the Buyer and DIVY Power. If the SPG System is found defective, DIVY Power will bear the cost of such testing, however if the SPG System is found to be without defect then the Buyer shall bear the cost of testing the SPG System.

7.5 For information relating to Warranty claims/service, disposal and/or recycling options, the Buyer should contact DIVY Power or contact the customer service representative at www.divypower.com

8. FORCE MAJEURE

8.1 Notwithstanding anything contained herein , DIVY Power shall not be responsible or liable in any way to the Buyer or any third party for any non-performance or delay in performance under this Warranty due to occurrence of any force majeure events such as fire, war, riots, strikes, thunderstorms,

For Divy Power Private Limited

Authorised Signatory

SPG System or the notification of the relevant warranty claim under this Warranty.

9. TRANSFER OF WARRANTY

9.1 The Warranty shall be applicable only to the original purchaser of the SPG System, and so long as the SPG System continues to be physically installed at its first installation location. In case of transfer ownership of the SPG System by the Buyer to any third party, the Warranty for the SPG System shall become void.

10. MODIFICATION OF WARRANTY

10.1 Unless modified in writing and signed by an authorized representative of the DIVY Power, the Warranty set forth herein is the only warranty by DIVY Power applicable to the SPG System and no one is authorized to restrict, expand or otherwise modify this Warranty.

11. MISCELLANEOUS

11.1 It is clarified that correction of defects in the manner and for the period of the described in this Warranty shall constitute full and complete satisfaction of all warranties, liabilities and obligations of DIVY Power to the Buyer with respect to the SPG System and shall constitute full and complete settlement of all claims of the Buyer against DIVY Power, whether based on contract, tort or otherwise.

11.2 Nothing contained in this Warranty shall constitute a new warranty or commencement of a fresh or extension time period during which the warranties set out herein apply.

11.3 If any provision of this Warranty shall constitute a new warranty or commencement of a fresh or extension time period during which the warranties set out herein apply.

a) Such provision shall be fully several; and,

b) these remaining provisions of this Warranty shall be construed and enforced as if such an illegal, invalid, or unenforceable provision had never comprised a part hereof.

11.4 Any dispute, controversy or claim arising out of or relating this Warranty, or the validity, interpretation, breach or termination thereof as may be designated as Dispute, including claims seeking redress or asserting rights under applicable law, shall, be resolved and finally settled in accordance with the provisions of the Arbitration and Conciliation Act, 1996 as may be amended from time to time or its

For Divy Power Private Limited

Authorised Signatory

India. The courts at Ghaziabad, India, shall have the exclusive jurisdiction to settles any claim or matter arising under this Warranty, without giving effect to any conflict of laws.

11.6 This Warranty constitutes the entire arrangement between DIVY Power and the Buyer with respect to the SPG system to the exclusion of all other understanding and assurances, either written or oral, the same shall supersede all such other understandings and assurances.

For Divy Power Private Limited

Authorised Signatory